

104	Gonzalez vs. Hoekstra 26-01539643	Motion to Strike Complaint is CONTINUED to 09/29/2026 at 10:00 AM. Moving party to give notice.
105	Johnson vs. Daily Bakery, Inc. 26-01562223	1. Motion to Strike Answer 2. Case Management Conference A corporation must be represented by an attorney; it cannot represent itself in court either as a self-represented litigant or through an officer or agent who is not an attorney. Merco Constr. Eng'rs v Municipal Court (1978) 21 C3d 724, 731; CLD Constr., Inc. v City of San Ramon (2004) 120 CA4th 1141, 1146. A corporation's appearance by an attorney is not, however, an absolute prerequisite to the court's fundamental jurisdiction to hear a case. Instead, a judge should treat a corporation's failure to appear through an attorney as a defect that may be corrected on such terms as are just. 120 CA4th at 1149–1150. The rule requiring representation by an attorney does not deprive a corporation of the capacity to be a party to a lawsuit and is not a fact that is essential to the corporation's cause of action or an element constituting its right of action. 120 CA4th at 1150. As such, recommendation is to Grant the Motion to Strike with leave to amend to allow Defendant Corporation time to acquire legal counsel. RECOMMENDED RULING: Plaintiff Scott Johnson moves this Court to Strike the Answer and enter the default of Defendant Daily Bakery, Inc., a California Corporation. A corporation must be represented by an attorney; it cannot represent itself in court either as a self-